

Sanjay Mishra S/O Satya Narain Mishra vs Principal Judge, Family Court, Lucknow on 8 July, 2010

Author: Rajiv Sharma

Bench: Rajiv Sharma

Court No. - 24

Case :- MISC. SINGLE No. - 2189 of 2010

Petitioner :- Sanjay Mishra S/O Satya Narain Mishra
Respondent :- Principal Judge, Family Court, Lucknow
Petitioner Counsel :- Ganga Singh
Respondent Counsel :- C.S.C., D.N. Mishra

Hon'ble Rajiv Sharma, J.

Heard.

Counsel for the petitioner submits that the opposite party no.2 filed an application under Section 151 CPC before the Family Court which was registered as Misc. Case No. 21 of 2009 praying therein for setting aside the judgment and decree dated 22.10.2008 passed in regular suit no. 679 of 2008 under Section 13-B of the Hindu Marriage Act. The aforesaid Misc. Case No. 21 of 2009 was fixed on 7.1.2010 and on that date the Court while summoning the main file, fixed 6.4.2010. But to the utter surprise of the petitioner, a restraint order was passed on 13.1.2010, behind the back of the petitioner.

Counsel for the petitioner says that the impugned order is an ex-parte order and has been passed without any notice or hearing to the petitioner and as such it suffers from serious infirmities. Therefore, he moved an application for vacation of the aforesaid order dated 13.1.2010. During the course of arguments, learned Counsel for the petitioner submitted that the interest of justice would suffice if the hearing of the Misc. Case No. 21 of 2009 is expedited and the application for vacation is heard on the date fixed i.e. 9.7.2010.

Considering the facts and circumstances of the case, the Family Court is directed to make earnest endeavour to dispose of the application on 9.7.2010 and in case, the same is not disposed of on that date, it shall be disposed of by 31st July, 2010. Misc. Case No. 21/2009 shall also be decided expeditiously. Parties are directed to co-operate in the final dispose of the case.

With the aforesaid observations and directions, this writ petition is disposed of finally.

Order Date :- 8.7.2010 HM